



**U.S. Citizenship
and Immigration
Services**

**Non-Precedent Decision of the
Administrative Appeals Office**

In Re: 43913762

Date: AUG. 24, 2026

Appeal of U.S. Citizenship and Immigration Services (USCIS) Decision

Form I-140, Immigrant Petition for Alien Workers (Extraordinary Ability)

The Petitioner is an investment banker who seeks classification as an alien of extraordinary ability. *See* Immigration and Nationality Act (the Act) section 203(b)(1)(A), 8 U.S.C. § 1153(b)(1)(A). This first preference classification makes immigrant visas available to those who can demonstrate their extraordinary ability through sustained national or international acclaim and whose achievements have been recognized in their field through extensive documentation.

Through its Service Center Operations (SCOPS), USCIS denied the Form I-140, Immigrant Petition for Alien Workers (petition), concluding the record did not establish that the totality of the evidence demonstrated that the Petitioner met this immigrant classification's requirements. The matter is now before us on appeal under 8 C.F.R. § 103.3. The Petitioner bears the burden of proof to demonstrate eligibility by a preponderance of the evidence. Section 291 of the Act; *Matter of Chawathe*, 25 I&N Dec. 369, 375 (AAO 2010). We review the questions in this matter de novo. *Matter of Christo's Inc.*, 26 I&N Dec. 537, 537 n.2 (AAO 2015). Upon de novo review, we will dismiss the appeal.

I. LAW

To qualify under this immigrant classification, the statute requires the filing party demonstrate:

- The alien enjoys extraordinary ability in the sciences, arts, education, business, or athletics;
- They seek to enter the country to continue working in the area of extraordinary ability; and
- The alien's entry into the United States will substantially benefit the country in the future.

Section 203(b)(1)(A)(i)–(iii) of the Act. The term “extraordinary ability” refers only to those in “that small percentage who have risen to the very top of the field of endeavor.” 8 C.F.R. § 204.5(h)(2). *See also* H.R. Rep. 101-723, 59 (Sept. 19, 1990), *reprinted in* 1990 U.S.C.C.A.N. 6710, 1990 WL 200418 at *6739 (stating: “In short, admission under this category is to be reserved for that small percentage of individuals who have risen to the very top of their field of endeavor.”).

The implementing regulation at 8 C.F.R. § 204.5(h)(3) sets forth a multi-step analysis. In the first step, a petitioner can demonstrate international recognition of his or her achievements in the field through a one-time achievement (that is, a major, internationally recognized award). If that petitioner

does not submit this evidence, then he or she must provide sufficient qualifying documentation that meets at least three of the ten criteria listed at 8 C.F.R. § 204.5(h)(3)(i)–(x) (including items such as awards, published material in certain media, and scholarly articles).

Where a petitioner meets these initial evidence requirements, we then move to the second step to consider the totality of the material provided in a final merits determination and assess whether the record shows sustained national or international acclaim and demonstrates that the individual is among the small percentage at the very top of the field of endeavor. *See Kazarian v. USCIS*, 596 F.3d 1115, 1121 (9th Cir. 2010) (discussing a two-step review where the documentation is first counted and then, if fulfilling the required number of criteria, considered in the context of a final merits determination); *see also Amin v. Mayorkas*, 24 F.4th 383, 394 (5th Cir. 2022).

II. ANALYSIS

A. Evidentiary Criteria

Because the Petitioner has not indicated or established that he has received a major, internationally recognized award, he must satisfy at least three of the alternate regulatory criteria at 8 C.F.R. § 204.5(h)(3)(i)–(x). Before SCOPS, the Petitioner claimed he met five of the regulatory criteria. SCOPS decided that the Petitioner satisfied four of the criteria relating to membership, judging, the authorship of scholarly articles, and performing in a leading or critical role but that he had not satisfied the criteria associated with a high salary or remuneration. On appeal, the Petitioner maintains that he meets the high salary criterion. As he has established that he meets three evidentiary criteria, we will discuss the evidence related to this additional criterion within the final merits determination below. After reviewing all the evidence in the record, we conclude he has not established overall eligibility for this highly restrictive immigrant classification.

B. Final Merits Determination

As the Petitioner has submitted the requisite initial evidence we will evaluate whether he has demonstrated, by a preponderance of the evidence, his sustained national or international acclaim and that he is one of the small percentage at the very top of the field of endeavor, and that his achievements have been recognized in the field through extensive documentation. In a final merits determination, we analyze the Petitioner’s accomplishments and weigh the totality of the evidence to determine if his successes are sufficient to demonstrate that he has extraordinary ability in the field of endeavor. *See* section 203(b)(1)(A)(i) of the Act; 8 C.F.R. § 204.5(h)(2), (3); *see also Kazarian*, 596 F.3d at 1119–20); *also see generally* 6 *USCIS Policy Manual* F.2(B)(2), <https://www.uscis.gov/policymanual> (stating that in a final merits determination USCIS officers should then evaluate the evidence together when considering the petition in its entirety to determine if the petitioner has established by a preponderance of the evidence the required high level of expertise of the immigrant classification). In this matter, we determine that the Petitioner has not documented his eligibility.

Congress set a very high benchmark for aliens of extraordinary ability by requiring a petitioner demonstrate “sustained national or international acclaim” and present “extensive documentation” to show his or her achievements have been recognized in the field. Section 203(b)(1)(A)(i) of the Act.

The two-step adjudication process is an interpretive rule that does not violate the Administrative Procedure Act, nor is it a legislative rule. *Taneja v. USCIS*, No. 24-CV-05657 (RER), 2026 WL 1734266, at *8 (E.D.N.Y. June 16, 2026); *Nagaiah v. Allen*, 784 F. Supp. 3d 798, 810 (E.D. Pa. 2025); *Agrawal v. Miller*, No. 4:24CV3143, 2025 WL 2879217, at *12 (D. Neb. Sept. 12, 2025); *Etsy, Inc. v. Jaddou*, No. 4:22CV3022, 2023 WL 3689555, at *23 (D. Neb. May 25, 2023) (citing *Perez v. Mortg. Bankers Ass’n*, 575 U.S. 92, 96 (2015)). This approach is rooted in an exhaustive historical review of the congressional record, the governing statutory language, and the comprehensive regulatory scheme intended to ensure only those at the very top of their field receive this classification.

To date, no other federal court has offered an alternative framework that is similarly grounded in such a thorough analysis of the legislative and agency history. *See generally* 6 *USCIS Policy Manual*, *supra*, F.2(B)(2). *Contra Mukherji v. Miller*, No. 4:24CV3170, 2026 WL 895708, at *6 (D. Neb. Jan. 28, 2026) (concluding the two-step framework was adopted without required notice-and-comment rulemaking). But that appears to misconstrue a conference report—which serves solely to explain how the House and Senate resolved differences between their two versions of the bill—as being more authoritative on this issue than a Judiciary Committee Report, the purpose of which includes guiding the executive branch in implementing the law and assisting the judicial branch in its interpretation. That view has been directly rejected by numerous federal courts before and since the *Mukherji* court made it.

According to the Petitioner’s resume, he earned a Master of Business Administration from a U.S. university and he possess approximately a decade in the investment banking industry with experience in financial technology, audits, financial services, mergers and acquisitions, as well as entrepreneurship.

Before we proceed, we address one of the Petitioner’s broad-reaching arguments. He claims within the appeal that—within the final merits determination—SCOPS conflated step one (the regulatory criteria requirements) with step two (where “the officer should consider the petition in its entirety to determine eligibility according to the standard” under 6 *USCIS Policy Manual*, *supra*, F.2(B)(1)). After reviewing SCOPS’ decision, we do not agree that it conflated the two steps. Within step one, SCOPS evaluated the Petitioner’s claims under each criterion’s specific requirements. Then, in step two, it considered whether the Petitioner’s achievements illustrated he attained national or international acclaim, and whether those accolades were commensurate with those who are part of the small fraction of individuals at the very top of his field. As a result, we are not persuaded that SCOPS committed an error in its final merits analysis.

And after reviewing the record—to include the arguments and evidence submitted on appeal—we agree with SCOPS’ ultimate conclusion under the final merits determination. *See Matter of J-A-*, 29 I&N Dec. 253, 254 (BIA 2025) (citing *Matter of Burbano*, 20 I&N Dec. 872, 874 (BIA 1994); *Giday v. INS*, 113 F.3d 230, 234 (D.C. Cir. 1997) (noting that the practice of adopting and affirming the decision below “is not only common practice, but universally accepted”). *See also Garland v. Ming Dai*, 593 U.S. 357, 370–71 (2021) (noting an administrative appellate body’s act of adopting and affirming the below decision is legitimate, incorporating the lower decision’s analysis and reasoning on the issues into the appellate determination).

Although the Petitioner is correct that SCOPS did not discuss the [REDACTED] [REDACTED] when considering his membership accolades, the reasoning behind that is perhaps because that association or membership is not in his field of endeavor that he claimed of investment banking. He further notes SCOPS didn't discuss his judging experience at the 2025 [REDACTED] [REDACTED]. This judging service appears to be a nominal instance of professionals evaluating investment-ready ventures, and the Petitioner served as a judge who scored these businesses using a standardized template. The record does not establish how these additional factors might elevate his stature in the field to qualify for this immigration benefit.

While we may not agree with SCOPS that his evidence is insufficient to satisfy the regulatory criterion at 8 C.F.R. § 204.5(h)(3)(ix), even where a foreign national demonstrates they received a high salary for his work compared to others in the field, that salary evidence alone is generally not sufficient to establish one as a singularly extraordinary person. *Hamal v. United States Dep't of Homeland Sec.*, No. 21-5160, 2023 WL 1156801, at *3 (D.C. Cir. Jan. 31, 2023).

Earning a salary higher than the 90th percentile for others in the field may be impressive, but it does not place one among the very top of the field). *Taneja v. USCIS*, No. 24-CV-05657 (RER), 2026 WL 1734266, at *8 (E.D.N.Y. June 16, 2026). “‘To hold otherwise would appear to require USCIS to find that all employees—absent other disqualifying characteristics—in the 90th percentile of their given field have reached that field’s pinnacle.’ [S]uch a requirement would render the extraordinary visa categorically less exclusive than the statute and regulation describe.” *Id.* (quoting *Jafarov v. USCIS*, No. 23 CIV. 3372 (PAE), 2024 WL 69056, at *9 (S.D.N.Y. Jan. 5, 2024)).

And while the opinion letters the Petitioner identifies on appeal illustrate his notable achievements, they are not adequately corroborated by evidence to paint the mosaic that his relative acclaim is sufficient to aid him in showing he is among the small few at the top of his field. The record here does not meet the requisite standard. “In creating the ‘extraordinary ability’ visa, Congress hoped to ‘draw the world’s best and brightest to American shores’ by giving ‘preferential treatment to highly talented immigrants.’” *Branski v. USCIS*, No. 25-CV-1695, 2026 WL 2427439, at *11 (E.D. Wis. Aug. 19, 2026) (quoting *Amin v. Mayorkas*, 24 F.4th 383, 386 (5th Cir. 2022)). While the Petitioner may be on a trajectory to at some point rise to the top of his field, he is not yet at the top tier of the global investment banking profession. His current record reflects he is in an associate roll with his employer placing him in a high-quality mid-career position with substantial room to advance rather than already demonstrating the seniority, major-deal leadership, client origination, and industry wide reputation associated with elite global bankers.

III. CONCLUSION

For the reasons discussed above, the Petitioner has not demonstrated his eligibility as an alien of extraordinary ability. The appeal will be dismissed for the above stated reasons, with each considered as an independent and alternate basis for the decision. In visa petition proceedings, it is a petitioner’s burden to establish eligibility for the immigration benefit sought. The Petitioner has not met that burden here.

ORDER: The appeal is dismissed.

NOTICE: This constitutes the final decision in this matter. The filing of a motion will not postpone the effect of the decision. 8 C.F.R. § 103.5(a)(1)(iv). Aliens who are not lawfully present, or who are otherwise inadmissible or deportable, may be subject to the commencement of removal proceedings under section 240 of the Act through the issuance of a Form I-862, Notice to Appear. Those proceedings may result in their removal from the United States and possible ineligibility for future visas or other immigration benefits.